

Determination of my application for special leave on full pay

Directive 12/24 clause 6.1 · long service leave · the Deed of 21 February 2025

Cory Lea Shepherd

AO3, Switchboard Services, Logan Hospital, Metro South Health

Employee number 388372 · Employee reference MSH-INJ-5795

To: Ms Noelle Cridland, Chief Executive, Metro South Health

Copy: Ms Jacqui Roberts

Date: 5 September 2026

1. WHAT I AM ASKING

I ask that you determine my application for special leave on full pay. It was made on 28 July 2026 and renewed on 5 August 2026, and it has not been determined. Clause 6.1 of Directive 12/24 places the power to approve such leave with the chief executive.

Separately, I ask that you decide either that Dr Krishnaiah's questions of 19 August 2026 be answered, or that I return to work under the arrangement approved on 9 June 2026. Either would end the absence. Neither addresses the period already elapsed, which is what the application concerns.

I also ask three questions about my long service leave eligibility date, and one about clause 6 of the Deed.

I make no allegation against any individual, and I ask for no finding to be made about anyone.

2. THE POSITION

I am absent from the workplace at the Health Service's direction. I have held an Employee Capability Checklist since 3 July 2026 certifying me fit for my role with restrictions, and I have remained available to work under the arrangement the Health Service itself approved on 9 June 2026.

I have received no wages for work since 13 July 2026. I have funded the absence myself: paid sick leave exhausted, then recreation leave, then half pay, and since then leave without pay. I have lost my housing.

A payment was made to me on 4 September 2026. It followed these requests:

3 Jul 2026, 3:18 pm	that the balance be processed as annual leave rather than sick leave without pay
10 Jul 2026, 8:35 am	that the shifts be treated as paid time and not deducted from my leave — unanswered
13 Jul 2026, 4:39 pm	the same request again; the basis in writing if refused; interim duties offered
22 Jul 2026	Payroll Enquiry 4438861 lodged
28 Jul 2026, 5:39 pm	special leave on full pay applied for
30 Jul 2026, 11:25 am	that the shifts from 3 July be paid by ad hoc payment and the leave re-credited
3 Aug 2026, 11:38 am	Stage 1 notice of dispute under EB12 cl 1.11, covering leave and pay
5 Aug 2026, 7:30 am	that my recreation leave not be applied; the period coded as special leave on full pay
31 Aug 2026, 10:59 am	formal application for long service leave on full pay from 13 July 2026
2 Sep 2026, 11:07 am	ad hoc payment requested to be processed that day
3 Sep 2026, 1:30 pm	the coding applied since 3 July, and payment under HR Policy C13
3 Sep 2026, 2:04 pm	who within Payroll had authority to action an ad hoc payment that day

That payment was of my own leave entitlements. It was not wages. I am now told I must wait until 29 September 2026 to fund the absence from seven years of service.

I do not accept that I should be funding this absence at all. Every application I have made has been made under protest and subject to re-credit, and this letter is written on the same basis.

3. THE MEDICAL INFORMATION

The Health Service has said it requires clarification of my medical position. It has held my signed authority to obtain that clarification directly from my treating psychiatrist since 24 August 2026.

On 13 August 2026 Dr Krishnaiah wrote to Injury Management. Ms Harrison replied the same afternoon, acknowledged that I had given permission, and wrote: "Happy to provide you with this information and to assist you with this." She recorded the reason for the request as being that I "had requested a reduction in hours and advised this request was due to medical reasons".

On 19 August 2026 Dr Krishnaiah put four questions to Injury Management: on what basis my earlier reductions in hours were accepted without medical certification; what has changed in the administrative position that warrants an in-depth psychiatric assessment; what the policy is on disclosure of sensitive mental health information and the grounds for it; and what concerns or risks observed or reported at the workplace warrant disclosure. He wrote that this "will help before I undertake detailed assessment to provide my professional opinion". He confirmed to me on 5 September 2026 that he is still waiting.

I am not asking the Health Service to answer to me. I am asking that it answer the clinician, so that the report it says it requires can be produced.

4. THE APPLICATION FOR SPECIAL LEAVE

Clause 9.12.1 of EB12 applies Directive 12/24. Clause 6.1 permits a chief executive to approve paid leave "for any purpose, with duration appropriate to the purpose", and clause 6.1(a) permits more than five days per reason "where the chief executive considers that circumstances warrant". Clause 6.5 requires the reason, the duration and the impact of refusal to be considered. On each:

- (a) **The reason.** I am absent at the direction of the Health Service, pending medical information it has sought and not yet obtained, while certified fit with restrictions and available to work.
- (b) **The duration.** A period ending on the earlier of the conclusion of the medical process or the date my long service leave becomes available. The request is bounded, and one of the two end points is within the Health Service's own control.
- (c) **The impact if refused.** No wages for work since 13 July 2026, and my housing lost. Since 3 July I have made two special leave applications, a long service leave application and a Stage 1 notice, and corresponded separately with my line manager, Payroll Services, Injury Management and Human Resources on each. The Stage 1 notice lapsed without outcome. On 28 August 2026 I withdrew the Stage 2 referral so these matters could be worked through collaboratively, reserving pay, the leave debited since 3 July and the Checklist adjustments as unresolved and in dispute. I have not renewed it.

I ask that the application be determined whichever course is taken. Even if Dr Krishnaiah's questions were answered today, the report, its consideration and any return would take further time, and I have no income during it.

If the power under clause 6.1 has been delegated, could you please tell me to whom and by when the application will be determined. In the five weeks since it was made, no decision-maker has been identified to me. If it is refused, I ask for the decision and reasons in writing.

5. LONG SERVICE LEAVE

I put this differently, because it is an entitlement rather than a request. Clause 22(c) of the Award provides that employees who have completed seven years' continuous service "are entitled to take long service leave on full pay or half pay". Clause 8.1 of Directive 10/24 and section 1 of HR Policy C38 are to the same effect. Recital B of the Deed records that my employment commenced on 25 March 2019, so seven years fell on 25 March 2026.

On 3 September 2026 Payroll advised an eligibility date of 4 September 2026. On 4 September I was advised of 29 September 2026. The difference from 25 March 2026 is 188 days, made up of three periods recorded as leave without pay — 8 May to 19 June 2022, 21 June to 20 September 2024, and 13 December 2024 to 23 February 2025. Could you please:

- (a) identify the provision under which periods of approved leave without pay are excluded from continuous service. I have read the *Industrial Relations Act 2016*, the Award, EB12, HR Policy C38 and Directive 10/24, and I have not been able to identify it;
- (b) tell me on what basis access at seven years is refused; and
- (c) determine my application of 31 August 2026. Clause 7.4 of Directive 10/24 requires a timely response indicating whether the leave is approved or not.

The calculation appears to have been made by reference to leave codes alone. It does not appear to take account of the Deed, under which I was reinstated with an effective date of 20 September 2024 and by which the Health Service reserved the matters of my absence rather than determining them. I ask that it be reviewed with the Deed before the reviewer. I ask questions (a) and (b) while maintaining that I should not be funding this absence at all.

6. THE DEED

Clause 6 reserved to the Health Service the right to deal with the outstanding matters of my absence, and clause 7 reserves my rights in relation to any future management action taken pursuant to clause 6. Could you please tell me whether the process commenced on 3 July 2026 is management action under clause 6.

7. ENCLOSURES

- 1. Dr Krishnaiah's email of 27 August 2026, forwarding his correspondence with Injury Management of 13 and 19 August 2026 (9 pages)
- 2. Limited Scope Authorisation for Disclosure of Medical Information, signed 24 August 2026
- 3. Dr Krishnaiah's email of 5 September 2026
- 4. Schedule of the provisions relied on. The instruments themselves are not enclosed, as the Health Service holds them.

I remain certified fit for my role with restrictions, and available to work. I would be grateful for a decision.